

**Department of Environmental Quality**  
700 NE Multnomah Street, Suite 600  
Portland, OR 97232

October 23, 2018

Dear Department of Environmental Quality,

On August 29, 2017, Oregon Gov. Kate Brown signed HB 2017, a \$5.3 billion funding bill that invests in transportation infrastructure as well as in efforts to reduce traffic congestion, make biking more accessible and incentivize electric vehicle (EV) use. Sections 148 to 157 of HB 2017 define a new, zero-emission and EV rebate program and establish a Zero-Emission Incentive Fund (ZEIF) to fund the new rebate program. Moneys in the ZEIF, which are separate from the State Highway Fund, are to be continuously appropriated to the Department of Environmental Quality (DEQ) to carry out the provisions of the new EV rebate program (discussed below). The primary source of moneys into the ZEIF will come from “a tax [that] is imposed on each vehicle dealer for the privilege of engaging in the business of selling taxable motor vehicles at retail in this state” (HB 2017, Section 90). HB 2017 was promulgated (enrolled) as Chapter 750, Oregon Laws 2017 and the provisions therein became effective October 6, 2017. Oregon Laws 2017, Chapter 750 was subsequently and officially amended by HB 4059 in April 2018. HB 4059 authorized the Environmental Quality Commission (EQC) to adopt the administrative rules necessary to carry out the provisions of Chapter 750. Chapter 340, Division 270 of the Oregon Administrative Rules (OAR) implements and codifies Oregon Laws 2017, Chapter 750, as amended by HB 4059. OAR 340-270 was officially adopted by the EQC and the zero-emission and EV rebate program became effective on May 14, 2018.

The enactment of a tax “for the privilege of engaging in the business of selling taxable motor vehicles” was challenged in the Oregon Supreme Court on November 3, 2017. The three petitioners in the case argued that the tax (to be computed at the rate of 0.5 percent of the retail sales price of a taxable motor vehicle) is subject to Article IX, Section 3a, of the Oregon Constitution. The Court disagreed. On August 2, 2018, Justice Duncan delivered the opinion of the Court: the Section 90 tax is unlike the taxes to which Article IX, Section 3a, was intended to apply and therefore the tax imposed by Oregon Laws 2017, Chapter 750, Section 90, is not subject to Article IX, section 3a, of the Oregon Constitution. This ruling cleared the way for DEQ to implement the zero-emission and EV rebate program.

DEQ has named the zero-emission and EV rebate program, The Oregon Clean Vehicle Rebate Program (the Program). The Program provides rebates (incentives) for the purchase of certain eligible vehicles. Those vehicles that qualify as “eligible vehicles” are defined at OAR 340-270-0030(4). Specifically, rebates are available for eligible light-duty zero-emission vehicles and plug-in hybrid electric vehicles with electrochemical energy storage capacities of 10 kilowatt hours or more (\$2,500 rebate); eligible light-duty zero-emission vehicles and plug-in hybrid electric vehicles with electrochemical energy storage capacities of less than 10 kilowatt hours (\$1,500 rebate); eligible neighborhood electric vehicles (\$750 rebate); and eligible zero-emission motorcycles (\$750 rebate). There is an additional Charge Ahead rebate of \$2500 available for the purchase or lease of new or used vehicles that meet the requirements of OAR 340-270-0410 if the purchaser is from a low or moderate income household. Note that the Program has detailed requirements for persons applying for the zero-emission vehicle standard rebates as well as for persons applying for the Charge Ahead rebate. These requirements are given at OAR 340-270-0120 and at OAR 340-270-0430, respectively.

Due to the effective dates of the Program (January 1, 2018 for eligible light-duty zero-emission vehicles, eligible plug-in hybrid electric vehicles, and the Charge Ahead rebate; January 1, 2019 for eligible neighborhood electric vehicles and eligible zero-emission motorcycles), DEQ has wisely chosen to stage the rebate application process. Persons who potentially meet Program requirements can complete a simple, Phase I application online. Timely submission of the Phase I application (within six months of the date of purchase or lease of a qualifying vehicle) ensures that the applicant is registered for the Program and will receive notice of the Phase II requirements.

DEQ is now developing the remaining applicant data submission criteria, program administration and oversight criteria, information flow and storage algorithms, and data collection and reporting structures that will allow for the full implementation and subsequent evaluation and monitoring of the Program. More specifically, DEQ must (1) design Phase II criteria and materials and make them readily available to all Phase I applicants and car dealerships; (2) promote the Program to prospective participants and provide information to current participants as well as to other

stakeholders; (3) coordinate with DEQ's central services division to design an effective database management system for tracking applicants and rebates; (4) coordinate with the State Chief Information Officer to secure a contractor to run the IT portions of the Program; (5) coordinate with DEQ's program analysts to craft valid metrics and an effective design plan for conducting useful, evidence-based evaluations of the Program; and (6) coordinate with DEQ's procurement specialists to design effective contractor budgetary constraints and oversight criteria. I can help DEQ meet its implementation goals for the Program by providing program design, management and evaluation support; program coordination and communication support; and overall technical support.

I am uniquely and ideally qualified to take on the challenges of the position of Clean Vehicle Rebate Coordinator (#DEQ18-0140). I am bicultural and bilingual. I hold M.S. degrees in both environmental chemistry and in systems science as well as graduate certificates in sustainability and in statistics. I was awarded an NSF ESUR-IGERT fellowship for doctoral research. I have extensive experience in environmental regulatory compliance. I have extensive experience working with the general public as a Portland Public School science teacher and as a host of public meetings. I have the ability to work effectively with underserved communities and across cultures, including professional and organizational cultures. I am keenly aware of social and environmental justice and have extensive experience in advancing equity and social justice through service. I have excellent oral and written communication skills and the ability to explain complex material to diverse community partners. I have extensive experience in program design, management and evaluation. I recently designed a database management system for a client who services the film production industry. I have given dozens of project and instructional presentations with technical content to very diverse audiences including the university scientific community, the City of Portland, conference attendees at the US International Association of Landscape Ecologists and the EcoDistricts Summit conferences, and students and their parents. I thrive in fast-paced, people-centered environments because I find real value in what folks have to say. I am genuinely approachable because I listen carefully with the intention of building enduring and fruitful relationships. My own conversation is measured, diplomatic, and inclusive.

I recognize that the responsibilities and challenges of the Clean Vehicle Rebate Coordinator are substantial. The Oregon Clean Vehicle Rebate Program can potentially provide about 4800 full rebates per year or nearly \$12 million in rebates. Not only will the Clean Vehicle Rebate Coordinator be responsible to ensure the accuracy, accountability, efficiency, effectiveness and transparency of the Program, but also will need to promote the Program so that it reaches its full potential. Coordination with DEQ's communication and outreach division will be crucial. Getting the message out about the environmental and economic benefits of EV ownership is a must (e.g., promoting the use of the eGallon calculator) as is coordination with other private and public programs. For example, Pacific Power may reinstate its EV rebate program and the Oregon legislature may approve Eligible Mitigation Actions using moneys from the VW Diesel Settlement to promote EVs, much as California has done.<sup>1</sup>. Lastly, there is a time crunch. Moneys for rebates have been collecting in the ZEIF since 2017 with rebates ostensibly available since January 2018. Additional vehicles become eligible for rebates in January 2019, and persons who qualify for the Charge Ahead program may be experiencing economic hardship while awaiting their rebate. In order to get the Program up and running as quickly as possible, an IT contractor (corporation, LLC, or nonprofit) must be procured. The process of selecting such a contractor requires close coordination with the State Chief Information Officer and ease of use with the Stage-Gate® innovation management platform.

I would be honored to join the DEQ team. I am a culturally connected, creative, warm-hearted, enthusiastic person with advanced regulatory compliance experience, extensive scientific and data science training, advanced scholarship, and reliable multi-tasking and project management experience. I am a mission-driven individual who seeks ethical employment that directly supports environmental sustainability and environmental justice. I am self-directed and comfortable working either independently or as a team member. I am accustomed to public scrutiny and accountability and have a client-based, customer service attitude with a knack for tact and diplomacy. I look forward to hearing from you at your earliest convenience.

En paz,



Bruce D. Marron, M.S.

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<sup>1</sup>In its Beneficiary Mitigation Plan for use of Environmental Mitigation Trust fund moneys, the California Air Resources Board expects to fund investments in light-duty ZEV infrastructure to meet its goals of deploying one million, zero- and near zero-emission vehicles by 2023.